

HOUSE BILL 2152

By Davis

AN ACT to amend Tennessee Code Annotated, Title 44,
relative to indemnification for destroyed animals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 44-2-105, is amended by deleting the section and substituting the following:

The commissioner through rules and regulations shall establish procedures for the payment of indemnities for animals destroyed under authority of this chapter.

Indemnity under this section shall be based on, but not limited to, the fair market value of the animal and the availability of funds for that purpose. Partial reimbursement may be allotted in lieu of fair market value if sufficient funds are not available. Indemnification may be disallowed in cases where the owner is in violation of this chapter.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.